with leave to amend.

8. Intentional Infliction of Emotional Distress

Defendants demur to this cause of action on the grounds that the FAC does not plead its essential elements: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) severe or extreme emotional distress; and (3) actual and proximate causation. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.)

To satisfy the first element, conduct "must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Potter v. Firestone Tire & Rubber Co*. (1993) 6 Cal. 4th 965, 1001 [quoting *Christensen v. Superior Ct.* (1991) 54 Cal. 3d 868, 903]; see also *McMahon v. Craig* (2009) 176 Cal. App. 4th 1502, 1515-16 ["Generally, conduct will be found actionable where the recitation of the facts to an average member of the community would arouse his resentment against the actor, and lead him to exclaim, Outrageous!"].)

In opposition, Plaintiff argues that her allegations at paragraphs 74 through 77 satisfy this standard. The Court cannot agree. These allegations are insufficient to support a cause of action for IIED.

Defendants' demurrer to Plaintiff's eighth cause of action for IIED is **sustained**, with leave to amend.

9. Violation of Rosenthal Fair Debt Collection Practices Act (Civ. Code § 1788 et seq.)

Defendants demur to this cause of action on the grounds that it lacks particularity, the FAC fails to plead that the HELOC qualifies as "consumer debt," the complained about conduct does not qualify as "debt collection," the Notice of Default's recording and related statutorily-required foreclosure communications are privileged, and the Code-based allegations are barred by the Act's one-year statute of limitations.

Plaintiff argues in opposition that "The FAC alleges that Defendants made false, deceptive, and misleading representations regarding the amount owed and the loan's status, and engaged in harassing and oppressive collection conduct (FAC ¶¶ 80-81)—conduct distinct from the mechanics of the nonjudicial foreclosure process itself." (Opp. at 7:19-22.) This argument fails to engage with the merits of Defendants' grounds for their demurrer.

Defendants' demurrer to Plaintiff's ninth cause of action for violation of the Rosenthal Fair Debt Collection Practices Act is **sustained**, with leave to amend.

10. Declaratory Relief

Defendants demur to this cause of action on the ground that there is no actual controversy between the parties. Plaintiff does not oppose Defendants' demurrer to this cause of action. Defendants' demurrer to the tenth cause of action for declaratory relief is **sustained**, without leave to amend.

5. 9:00 AM CASE NUMBER: C24-01458
CASE NAME: KHOI SENDEROWICZ VS. SPECIALIZED LOAN SERVICING, LLC
STRIKE PORTIONS OF THE 1ST AMENDED COMPLAINT
FILED BY: SPECIALIZED LOAN SERVICING, LLC
TENTATIVE RULING:

Before the Court is Defendant Specialized Loan Servicing, LLC and Defendant NewRez, LLC dba

Shellpoint Mortgage Servicing fka Specialized Loan Servicing, LLC (collectively, “Defendants”)’s motion to strike portions of Plaintiff Khoi Senderowicz (“Plaintiff”)’s First Amended Complaint. Plaintiff opposes the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, as described further below.

Legal Standard

California Civil Code (“CC”) § 3294 provides in relevant part:

> In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...
>
> > (1) ”Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.
> >
> > (2) ”Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.
> >
> > (3) ”Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294.)

California Code of Civil Procedure § 436 provides:

> The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:
>
> > (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
> >
> > (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code Civ. Proc. § 436.)

Motion

The Motion seeks an order striking the First Amended Complaint in its entirety as untimely; or, in the alternative, striking specific allegations as follows:

- The following allegation in paragraph 71 of the Seventh Cause of Action (Negligent Loan Servicing): “The extreme nature of Defendants’ misconduct rises to the level of gross negligence warranting punitive damages.”
- The phrase “and attorney’s fees” from paragraph 82 of the Ninth Cause of Action (Violation of Rosenthal Fair Debt Collection Practices Act).
- Prayer for Relief ¶ 2 (“Restitution of all improper payments made under false pretenses”);
- Prayer for Relief ¶ 3 (“Punitive damages where authorized by law”);
- Prayer for Relief ¶ 6 (“Permanent injunctive relief prohibiting foreclosure based on the invalid

Notice of Default");

- Prayer for Relief ¶ 7 ("Mandatory injunctive relief requiring rescission of the Notice of Default and restoration of proper loan terms"); and
- Prayer for Relief ¶ 9 ("Reasonable attorney's fees and costs under applicable statutes and contractual provisions").

Analysis

As a threshold issue, the Court declines to strike the entire FAC as untimely for the seventeen-day gap between the expiration of the seven-day filing window and the FAC's actual filing date. Instead, the Court will address the merits of Defendants' specific challenges to the FAC.

Injunctive Relief

Defendants move to strike Plaintiff's request for injunctive relief on the grounds that Plaintiff's requested relief is moot; specifically, the Notice of Default recorded on December 27, 2023 was rescinded by Notice of Rescission recorded March 10, 2025 (RJN, Ex. 3) and Plaintiff then satisfied the loan in full and sold the Property to Catapult Custodian LLC on December 22, 2025. (RJN, Ex. 5.) Plaintiff does not oppose striking Prayer ¶ 6 or Prayer ¶ 7. Defendants' motion is **granted** with respect to the injunctive relief prayers, without leave to amend.

Restitution

Defendants move to strike Plaintiff's prayer for restitution on the grounds that Plaintiff holds no vested ownership interest in the payments she made, the voluntary-payment doctrine bars her claim, and her predicate claims for violation of Civil Code § 2924 and Unfair Business Practices fail for reasons argued in the concurrently filed Demurrer.

"In the context of the UCL, 'restitution' is limited to the return of property of funds in which plaintiff has an ownership interest (or is claiming through someone with an ownership interest)." (*Madrid v. Perot Systems Corp.* (2005) 130 Cal.App.4th 440, 453.) "Thus, the California Supreme Court has defined a UCL order for restitution as one 'compelling a UCL defendant to return money obtained through an unfair business practice to those persons in interest from whom the property was taken, that is, to persons who had an ownership interest in the property or those claiming through that person.'" (*Id*.) "The California Supreme Court has held that, while restitutionary disgorgement [of profits] may be an available remedy under the UCL, nonrestitutionary disgorgement [of profits] is not available in a UCL individual action or in a UCL representative action...." (*Id*. at 460.)

Here, Plaintiff has not alleged that Defendants holds property or funds that Plaintiff has an ownership interest in. Rather, she alleges she was damaged by Defendants' conduct in that she was forced into bankruptcy and suffered high-interest refinancing costs. These are not the sort of injuries that give rise to the restitutionary remedy under the UCL.

Defendants' motion is **granted**, with leave to amend.

Punitive Damages

Defendants move to strike Plaintiff's punitive damages allegations on the grounds that Plaintiff's FAC "has not alleged any actual facts which support the contention that any conduct on the part of Defendants was undertaken with the requisite malice, oppression, intent, or fraud to bring about punitive damages." (Mot. at 6:14-16.) The Court is inclined to agree.

Here, there are insufficient factual allegations to support circumstances of fraud, malice or oppression on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)

Furthermore, when seeking punitive damages against a corporation like Defendants, Plaintiff must allege "advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation." (Civ. Code §3294.) A review of Plaintiff's FAC shows that there are no allegations regarding the conduct of an officer, director, or managing agent of either Defendant. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See CCP § 3294(b).)

For the foregoing reasons, Defendants' motion is **granted** with respect to the punitive damages allegations within paragraph 71 of the seventh cause of action and paragraph 3 of the prayer for relief, with leave to amend.

Attorney's Fees

Defendants move to strike Plaintiff's prayer for attorney's fees on the grounds that Plaintiff has not alleged any statutory or contractual provision that would entitle her to attorney's fees.

While Defendants are correct that Plaintiff has not alleged any contractual provision that would entitle her to attorneys' fees, unsupported attorneys' fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, "[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorneys' fees are recoverable as costs if authorized by statute, contract or law. (CCP § 1033.5, subd. (a)(10).)

As a consequence, Defendants' motion is **denied** with respect to the attorney's fees allegations.

6. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.

FILED BY: CHU, M.D., LINDA
TENTATIVE RULING:

Continued by the Court to September 20, 2026.

7. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.
SEAL DECLARATIONS IN SUPPORT OF MOTION TO COMPEL ARBITRATION THAT CONTAIN CONFIDENTIAL INFORMATION
FILED BY: CHU, M.D., LINDA
TENTATIVE RULING:

Continued by the Court to September 20, 2026.

8. 9:00 AM CASE NUMBER: C25-03197